President also made this clear to Congressional leaders later that day. If he failed to get the fourteen votes he needed in the OAS, the action could be made legal by a declaration of war. He made clear to ExComm that the blockade would proceed regardless of the OAS vote. On 23 October the vote in the OAS was a resounding 19-0 and a victory for US diplomacy. Dean Rusk acquired a large feather in his cap.

Ormsby-Gore had warned Kennedy that as Britain was not a signatory to the Rio Treaty it had no legal obligations under its terms. The same was true of other trading nations in Europe and elsewhere. In his letter of 22 October, Macmillan struck a different tone. He asked for the best legal arguments to support the American case, outlined how the issue of blockade had been treated in peace and war, but concluded that 'we must rest not so much on precedent as on the unprecedented condition of the modern world in the nuclear age'.[64]

The British government's legal officers, including within the Foreign Office, took a rather different view. On 25 October the Cabinet was presented with a paper from the Lord Chancellor, Lord Dilhorne, stating that 'in our view, the imposition of the "quarantine" cannot be justified as "Pacific blockade" under international law. In fact, the United States' conduct is not in conformity with international law.'[65] The Foreign Office, however, avoided public condemnation of the Kennedy administration as 'pirates' or 'degenerate imperialists,' and sought the most discreet of methods to inform the State Department of their opinion. In public, the British government maintained its support for Washington, including in the United Nations Security Council. Macmillan told the House of Commons, 'I do not think this is the moment to go into the niceties of international law.'[66]

During the course of the week, Kennedy and Macmillan spoke over a secure telephone link. Their mutual concern over Berlin was apparent. On Wednesday, 24 October, the President floated the idea that Cuba might act as a hostage, preventing Khrushchev from moving on Berlin. The problem of the missiles in Cuba, which were soon all operational, nevertheless remained. While Kennedy had not consulted Macmillan before deciding on the blockade, he now discussed his options, and specifically asked the